

6. Defendants and their agents shall preserve all records, electronically stored information, and communications concerning the matters at issue in this action

The court ordered the plaintiff to serve the OSC notice and supporting papers no later than July 2, 2026.

The Court has carefully reviewed the plaintiff's notice of ex parte application (totaling 3 pages); memorandum of points and authorities (totaling 6 pages); Declaration of Gianni Amato regarding notice (totaling 2 pages); Declaration of Gianni Amato regarding notice (totaling 4 pages); Exhibits A-M in support of the motion and attached to the Declaration of Amato (totaling 111 pages); proposed order (totaling 5 pages); Judge Flanagan's June 29, 2026 Order (totaling 4 pages); Declaration of Amato regarding June 29 Order and attached Exhibits 1-2 (totaling 14 pages); Supplemental Declaration of Amato regarding June 29 Order (totaling 5 pages); Declaration of Steven C. Christianson (totaling 4 pages); Supplemental Declaration of Steven C. Christianson and attached Exhibit A (totaling 5 pages); Opposition of Defendants' Order to Show Cause (totaling 18 pages); Declaration of Jonathan Shan in support of Defendants' Opposition and attached Exhibits A -E (totaling 30 pages); Plaintiff's Reply (totaling 15 pages); Declaration of Amato and attached Exhibits A-K in support of Reply (totaling 67 pages); Declaration of Teri M. Lawrence in support of the Reply and attached Exhibits A (totaling 5 pages); Objections to the Declaration of Shan (totaling 3 pages); Request for Judicial Notice (totaling 19 pages); proposed order (totaling 5 pages); and plaintiff's notice of supplemental authority (totaling 31 pages); proof of services; and the pleadings.

II. PROCEDURAL MATTERS

A. SERVICE AND NOTICE OF OSC

On June 29, 2026, the Honorable Mark Flanagan denied the plaintiff's TRO and set this OSC Preliminary Injunction. The plaintiff was ordered to provide notice and supporting papers to the defendants no later than July 2, 2026. Upon review of the declarations and supplemental declarations of Amato and Christiansen, the Court finds that the plaintiff complied with timely notice and service of the OSC.

B. REQUEST FOR JUDICIAL NOTICE

Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Plaintiff Amato seeks judicial notice of four documents. First Exhibit 1, the Amended and Restated Declaration of Covenants, Conditions and Restrictions of Plant 51 Homeowner Association that was recorded on September 12, 2019, in the Official Records of Santa Clara County as Document. No. 24279008. This request is unopposed and GRANTED. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375).

Second, Exhibit 2 is the Honorable Flanagan's June 29, 2026 Order, denying the TRO and issuing an OSC regarding Preliminary Injunction. This request is unopposed and GRANTED. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Id.*).

Third, the court's records as to *Amato vs Plant 51 Homeowners Association* in Santa Clara County 26SC097946. This request is unopposed, but DENIED under court discretion as unnecessary and irrelevant to evaluate the present issue at hand in case number 26CV493956.

Fourth, the City of San José Department of Planning, Building and Code Enforcement Notice of Violation / Inspection Notice No. 202604261 concerning 88 Bush Street, Unit 2119, including the corrections schedule stated therein. This request is unopposed and GRANTED. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Id.*).

C. PLAINTIFF'S OBJECTIONS TO THE DECLARATION OF SHAN

Plaintiff objects to three portions of the Declaration of Jonathan Shaun: (1) paragraph 16 and Exhibit E; (2) paragraph 15 and 27; and (3) paragraph 26. The Court OVERRULES the objections.

III. LEGAL STANDARD

A. PRELIMINARY INJUNCTION

The purpose of a preliminary injunction is to preserve the *status quo* pending final resolution upon a trial. (*Scaringe v. J.C.C. Enterprises, Inc.*, (1988) 205 Cal.App.3d 1536; *Grothe v. Cortlandt Corp.*, (1992) 11 Cal.App.4th 1313, 1316; *Major v. Miraverde Homeowners Assn.*, (1992) 7 Cal.App.4th 618, 623). The *status quo* has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (*Voorhies v. Greene* (1983) 139 Cal.App.3d 989, 995, quoting *United Railroads v. Superior Court*, (1916) 172 Cal. 80, 87; *14859 Moorpark Homeowner's Assn. v. VRT Corp.*, (1998) 63 Cal.App.4th 1396, 1402).

In determining whether to issue a preliminary injunction, a court must weigh two interrelated factors: (1) the reasonable probability that the plaintiff will ultimately prevail on the merits at trial (Code of Civ. Proc. §526(a)(1)), and (2) the relative interim harm and "irreparable harm" to the parties from issuance or nonissuance of the injunction. (*Id.*, at (a)(2); *14859 Moorpark Homeowner's Assn.*, *supra*, 63 Cal.App.4th at 1402; *Pillsbury, Madison & Sutro v. Schectman*, (1997) 55 Cal.App.4th 1279, 1283; *Davenport v. Blue Cross of California*, (1997) 52 Cal.App.4th 435, 446). The court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678). Accordingly, a preliminary injunction may not issue without some showing of potential entitlement to such relief. (*Doe v. Wilson*, (1997) 57 Cal.App.4th 296, 304). The decision to grant a preliminary injunction generally lies within the sound discretion of the trial court and will not be disturbed on appeal absent an abuse of discretion. (*Thornton v. Carlson*, (1992) 4 Cal.App.4th 1249, 1255).

Injunctive relief may be granted based on a verified complaint only if it contains sufficient evidentiary, not ultimate, facts. (Code of Civ. Proc., §527(a)). For this reason, a pleading alone rarely suffices. (Weil & Brown, California Procedure Before Trial, 9:579, 9(II)-21 (The Rutter Group 2007)). The burden of proof is on the plaintiff as moving party. (*O'Connell v. Superior Court*, (2006) 141 Cal.App.4th 1452, 1481).

B. BOND

A preliminary injunction ordinarily cannot take effect unless and until the plaintiff provides an undertaking for damages which the enjoined defendant may sustain by reason of the injunction if the court finally decides that the plaintiff was not entitled to the injunction. (Code of Civ. Proc. §529(a); *City of South San Francisco v. Cypress Lawn Cemetery Assn.*, (1992) 11 Cal.App.4th 916, 920).

In setting the bond, the court must assume that the preliminary injunction was wrongly issued. (*Abba Rubber Co. v. Seaquist*, (1991) 235 Cal.App.3d 1, 15). The attorney's fees necessary to successfully procure a final decision dissolving the injunction also are damages that should be included in setting the bond. (*Id.*, at 15-16). While *Abba* reasoned that the plaintiff's likelihood of prevailing is irrelevant to setting the bond, a more recent case disagreed, stating that the greater the likelihood of the plaintiff prevailing, the less likely the preliminary injunction will have been wrongly issued, and that is a relevant factor for setting the bond. (*Oiye v. Fox*, (2012) 211 Cal.App.4th 1036, 1062).

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IV. ANALYSIS

A. PRELIMINARY INJUNCTION

Here, the Plaintiff initially requested six grounds for injunctive relief. However, the plaintiff withdrew its request for injunctive relief number 5: From issuing any further cease-and-desist letter, demand letter, or threat of enforcement to Plaintiff or any contractor retained by Plaintiff concerning the work required by Notice of Violation 202604261, or the emergency mitigation of Unit 2119, during the pendency of this action. Thus, this request is withdrawn and moot.

Thus, there are five remaining requests:

1. From interfering with, contracting, instructing, directing, or communicating with Silicon Valley Builders, Inc., (CSLB license No. 113389), or any successor licensed contractor retained by Plaintiff, for the purpose of causing, requesting, inducing, or threatening any such contractor to cease, suspend, delay, decline, or refrain from performing work at Unit 2119;
2. From requiring, conditioning, treating, or asserting Architectural Review Committee approval or any other architectural or design approval as a precondition to Plaintiff's performance of (a) emergency mitigation and mold-remediation work, and (b) the health and safety and code-mandated repairs required by City of San Jose Notice of Violation No. 202604261, including any related permit, plan-submittal, or correction requirement;
3. From assessing, imposing, posting, charging, or collecting any further late charge, "reminder notice" fee, delinquency fee, delinquency interest, fine, penalty, administrative fee, or other charge against Plaintiff's account (Account No. 095100184764) or against Unit 2119, and from undertaking any other collection activity with respect to the disputed charges, during pendency of this action;
4. From recording, or causing to be recorded, any assessment lien, notice of delinquent assessment, or any other document evidencing, perfecting, or giving notice of such a lien against Unit 2119, and from taking any further step in furtherance of the pre-lien process initiated by the June 8, 2026 "Notice of Intent to Lien" and any related Civil Code section 5660 notice, based upon the disputed charges identified in the Declaration of Gianni Amato;
5. Defendants and their agents shall preserve all records, electronically stored information, and communications concerning the matters at issue in this action

As to request number 4, the plaintiff provides that he has paid off any payments. The Court did not receive any update form defense, but notes that if full payment has been effectuated this request may be moot. Court will hear oral argument.

As for request number 5, the Court notes that retention of relevant evidence, including electronically stored information related to litigation is a standard practice when a lawsuit is filed.

Defendants oppose the request for a preliminary injunction on four main grounds. First, on June 29, 2026, Judge Flannagan already found that no irreparable harm would befall the plaintiff. (Opposition, p. 5). The defendants argue that this finding is significant as the plaintiff's request for a preliminary injunction is based on the same allegations in his TRO, including allegations of interference with the contractors, dispute concerning architectural review, chare, collection activity, and issues relation to the City's Notice of Violation. (*Id.*). Defendants assert that

over five weeks have lapsed and the defendant continues to pursue litigation, participate in the ARC process, pursue related disputes, but fails to demonstrate imminent irreparable harm. (*Id.*, p. 5-6). Defendants also argue that any alleged injuries are not irreparable and may be addressed in ordinary litigation and monetary damages. (*Id.*). Given the absence of material change and demonstration of irreparable harm, the defendants argue that an injunction requiring extraordinary judicial intervention is not merited.

Second, the Plaintiff failed to meet its burden of showing a likelihood of succeeding on the merits of the claims. Defendant emphasizes that Defendant Plant 51 Homeowners Association (“Association”) is a common-interest development governed by recorded by documents requiring review and approval of architectural modifications. (Opposition, p. 6). Even if Plaintiff disagrees with the Association’s determination that portions of his proposed project require review, it does not establish that the Defendants acted unlawfully or exceed the scope of their authority. (*Id.*, at p. 7). Parties contest whether or not emergency remediation work was prohibited. Plaintiff has submitted supplemental plans for ARC review. (*Id.*, at p. 8). Defendants also contest that the plaintiff cannot prevail on a contractor-interference theory and argues this theory hinges entirely on the contractor's interpretation of communications concerning ARC approval requirements and not any directive prohibiting work. (*Id.*, at p. 9). The defendants argue that whether ARC approval was required, Plaintiff’s submissions were complete, Defendant’s communications were appropriate, and any contractor reasonably relief upon communications are the material disputed facts that cannot be resolved in a preliminary injunction record. (*Id.*, at p. 10). Defendants also challenge the lien claim and City-notice claim as evidence that the plaintiff cannot establish a likelihood of prevailing. (*Id.*, at p. 11-13).

Third, Defendants argue that the injunction should be denied based on balancing hardship, which weighs in favor of the defendants. (*Id.*, at p. 13). Plaintiffs primary harm is economic and procedural in nature and in the First Amended Complaint seeks monetary damages. (*Id.*). However, the issuance of an injunction would immediately and substantially impair Defendants’ ability to perform core functions associated with the governance and administration of a common interest development. (*Id.*). Thus, the injunction would impact and present a hardship for developments and the Association and other homeowners who rely on the enforcement of community standards and procedures. (*Id.*, at p. 14).

Finally, Defendants argue that the injunction does not preserve status quo as it would prevent the defendants from enforcing architectural review requirements, communicate with contractors regarding work performed within the development, assess or collect disputed charges, enforce correspondence and pursue collection related remedies. (*Id.*, at p. 15).

In reply, Plaintiff opposes this assertion and claims that irreparable harm is imminent based on his inability to reconstruct his unit and presents a declaration from a cohabitant, including a minor-child resident alleging respiratory ailments that may be related to the housing environment. (Declaration of Teri Lawrence ¶¶ 2-4; Reply p. 9). Plaintiff also asserts that the recorded lien against Unit 2119 has been in full in the amount of \$2,847.19. (Reply, p. 6). Thus, Plaintiff claims that a lien against the unit would cloud title and impair the plaintiff from selling refinancing, and would essentially constitute an irreparable harm (*Id.*). Plaintiff also challenges the argument that the injunction is overbroad and argues it is narrowly tailored to the issues at hand involving Unit 2119. (*Id.*, at p. 11-12). Plaintiff also asserts that the defendant does not oppose the preservation of records including electronically stored information. (*Id.*, at p. 14). Plaintiff challenges the defendants’ representation of status quo and argues that the last peaceable and uncontested status dates back to when restorations were to be made on a bathroom rendered unusable since 2024. (*Id.*, at p. 15).

In weighing the two interrelated factors of the reasonable probability that the plaintiff will ultimately prevail on the merits at trial and the relative interim harm and “irreparable harm” to the parties from issuance or nonissuance of

the injunction, the Court finds that it weighs in favor of the defendants. The plaintiff has not made a showing of prevailing on the merits versus the defendants have made a showing that the injunction would result in greater interim harm and the order would impact status quo. The First Amended Complaint and the evidence presented does not contain sufficient evidentiary facts to issue a preliminary injunction. Further, the court agrees with Judge Flannagan's prior ruling that there has been no showing of irreparable harm. The lawsuits filed by the Plaintiff against the defendant in this present case and small claims court provides legal remedies, including monetary damages that are adequate.

B. BOND

Here, Defendants argue for a denial of the injunction, but if injunctive relief is granted seeks a "substantial amount" to protect its rights. (Opposition, p. 16). The Plaintiff seeks a nominal undertaking of \$1,000.00 as bond. (Reply, p. 15). Based on the court's ruling denying the preliminary injunction, the Court need not analyze a bond amount under Code of Civil Procedure section 529.

V. CONCLUSION

Based on the foregoing, the Plaintiff has not shown a reasonable likelihood of success and balancing the irreparable harm analysis, the request for a preliminary injunction is DENIED. The Court will prepare the formal Order.